

Dipikaben Bhaveshkumar Shah (D/O ... vs Bhaveshkumar

Author: G.B.Shah

Bench: G.B.Shah

DIPIKABEN BHAVESHKUMAR SHAH (D/O VINODKUMAR MANGALDAS SHAH....Applicant(s)V/SBH

C/MCA/481/2012

CAV JUDGEMNT

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD MISC.CIVIL APPLICATION (FOR TRANSFER) NO. 481 of 2012 FOR APPROVAL AND SIGNATURE:

H O N O U R A B L E M R . J U S T I C E G . B . S H A H
===== Whether Reporters of Local
Papers may be allowed to see the judgment?

NO To be referred to the Reporter or not?

NO Whether their Lordships wish to see the fair copy of the judgment?

NO Whether this case involves a substantial question of law as to the interpretation
of the constitution of India, 1950 or any order made thereunder?

NO Whether it is to be circulated to the civil judge?

NO ===== DIPIKABEN
BHAVESHKUMAR SHAH (D/O VINODKUMAR MANGALDAS

SHAH....Applicant(s) Versus BHAVESHKUMAR MANHARLAL
SHAH....Opponent(s) =====
Appearance:

MR AFTABHUSEN ANSARI, ADVOCATE for the Applicant(s) No. 1 MR CB
PRAJAPATI, ADVOCATE for the Applicant(s) No. 1 MR RULE CORAM:

HONOURABLE MR.JUSTICE G.B.SHAH Date : 27/02/2013 CAV JUDGEMNT

1. Present application has been preferred by the applicant under Section 24 of the Code of Civil Procedure, 1908 for transfer of two different proceedings initiated by the respondent herein, one being Hindu Marriage Petition No. 20 of 2011 seeking divorce, pending in the Court of learned Senior Civil Judge at Ankleshwar and other being Misc. Civil Application (under Guardian and Wards Act) No. 257 of 2011 for appointing the Guardian, pending in the District and Sessions Court at Bharuch.

2. Rule issued by this Court has been duly served upon the respondent and learned advocate Mr. M. M. Saiyed has appeared on behalf of the respondent.

3. Heard, learned advocate Mr. Ansari for the applicant and learned advocate Mr. Saiyed for the respondent. The learned advocate for the applicant submitted that the applicant and the respondent are husband and wife, whose marriage was solemnized on 07/12/2006. Out of the said wedlock, they have a boy child, who is, at present, aged about four years. It is alleged by the applicant wife that the respondent herein and his mother were used to give torture and harassment to the applicant and due to unlawful act of the respondent herein, the applicant had to leave her matrimonial home with the minor child. The learned advocate for the applicant submitted that the respondent herein has wrongly filed the aforesaid divorce petition, as when the same was filed, the applicant

- wife was residing with the respondent husband and as per law, there should be at least six month s judicial separation for filing the necessary proceeding. The learned advocate for the applicant further submitted that present applicant - wife has also filed an application for maintenance being Criminal Misc. Application No. 121 of 2011, which is pending before the learned Judicial Magistrate First Class at Padra, Dist. Vadodara.

3.1 The learned advocate for the applicant further submitted that with a view to causing harassment to the applicant, the respondent - husband has preferred the aforesaid proceedings. The learned advocate submitted that the applicant is a poor lady, having no source of income, residing at her parental home with her minor child. He further submitted that the distance between the residence and the place of proceedings (Bharuch/Ankleshwar) is approximately 90 km. and the applicant has to travel to such a distance for attending the proceedings. The learned advocate further

submitted that, if the aforesaid proceedings have not been transferred as prayed for, the applicant will have to suffer much more inconvenience and difficulties, besides incurring expenses for the same. Moreover, the learned advocate submitted that, the minor child is residing with the applicant and being a minor, aged about four years only, for attending the aforesaid proceedings, the applicant has to take the child with her, which would further add into the difficulties of the applicant, whereas, the respondent herein has to suffer no such difficulties if the said proceedings are transferred as prayed for.

Eventually, the learned advocate for the applicant prayed that the present application may be allowed and the aforesaid proceedings may be transferred, as prayed for. In support of his submissions, the learned advocate for the applicant has relied upon a decision in *Deepti Bhandari Vs. Nitin Bhandari*, reported in 2012 (2) GLR 1332.

4. Per contra, the learned advocate for the respondent husband, has vehemently opposed the application. The learned advocate for the respondent submitted that the transfer application is not maintainable as the aforesaid proceedings are pending at different stages and certain facts are required for separate adjudication. Moreover, the learned advocate for the respondent submitted that there is enough frequency of trains as well as of road transport for commutation to and fro from Vadodara to Bharuch/Ankleshwar. The learned advocate further submitted that looking to the pendency of cases at the Vadodara Court, it may take several years in deciding the aforesaid proceedings. The learned advocate further submitted that the respondent herein has a reasonable apprehension of being attacked by the relatives of the applicant herein at Vadodara. The learned advocate for the respondent submitted that the respondent is ready and willing to pay the expenses, that may be incurred by the applicant, for attending the aforesaid proceedings filed by the respondent, and as such, as observed by the Hon ble the Apex Court, when the respondent husband is ready and willing to bear the expenses to be incurred by the applicant for attending the aforesaid proceedings, transfer of the application/s can be refused. In support of his submissions, the learned advocate for the respondent relied upon the decisions of the Hon ble the Apex Court, reported in (2004) 13 SCC 364, (2004) 13 SCC 436 and (2004) 13 SCC

411. Last but not the least, the learned advocate for the respondent husband submitted that the present application may be dismissed.

5. Having heard the learned advocates for the parties and taking into consideration the papers on record, so also, on going through the aforesaid decisions of the Hon ble the Apex Court, and also taking into consideration the observations made by the Hon ble the Apex Court in *Sumita Singh Vs. Kumar Sanjay*, reported in (2001) 10 SCC 41 = AIR 2002 SC 396 as well as in *Deepti Bhandari s case* (supra), this Court is of the opinion that, admittedly the respondent herein is ready and willing to pay the expenses that may be incurred by the applicant, however, it is the inconvenience and difficulties of the wife, that are to be looked into, besides the expenditure aspect and not of the husband. Here, in the case on hand, the applicant has to travel to different places for attending the aforesaid proceedings i.e. at Bharuch and Ankleshwar, respectively, from Padra, Dist. Vadodara, where she resides, which would be very inconvenient and difficult for her to cope up the same,

though there may be enough frequency for commutation, moreso, she being a lady, having a minor child aged about four years, has to travel along with her child. On the other hand, the respondent husband may not have to suffer such inconvenience and difficulties, if the aforesaid proceedings are transferred. In the considered opinion of this Court, interest of justice would be met, if the present application is allowed.

6. In above view of the matter, the present application is allowed. The proceedings being Hindu Marriage Petition No. 20 of 2011, pending before the Court at Ankleshwar and the Misc. Civil Application (Guardian Application) No. 257 of 2011, pending before the Court at Bharuch, are ordered to be transferred to the Family Court at Vadodara. The learned Principal District Judge, Bharuch is directed to send the R&P of the aforesaid proceedings to the Family Court at Vadodara, forthwith. Rule is made absolute to the aforesaid extent, with no order as to costs.

[G. B. Shah, J.] hiren Page of 7